

Member ID: _____

Time: _____

Rank: _____



Legal Office Procedures (245)

STATE 2025

OBJECTIVE QUESTIONS

35 @ 3 points each _____ (105 points)

PRODUCTION

Job 1: Letter _____ (100 points)

Job 2: Final Judgment _____ (100 points)

TOTAL POINTS _____ ***(305 points)***

Test Time: 60 minutes

GENERAL GUIDELINES:

Failure to adhere to any of the following rules will result in disqualification:

1. Member must hand in this test booklet and all printouts if any. Failure to do so will result in disqualification.
2. No equipment, supplies, or materials other than those specified for this event are allowed in the testing area. No previous BPA tests and/or sample tests (handwritten, photocopied, or keyed) are allowed in the testing area.
3. Electronic devices will be monitored according to ACT standards.

EXAM GUIDELINES:

1. Ensure this test booklet contains Jobs 1-2.
2. Key all jobs according to the instructions given.
3. Correct any and all formatting, spelling or grammar errors. Use the formatting guide in the *Style & Reference Manual*.
4. Your name or initials should *not* appear on any work you submit. Use your Member ID in any occasion you would normally key your reference initials.
5. In the lower **right-hand** corner of ALL work submitted (unless otherwise specified), key your Member ID and job number.
6. If you complete the event before the end of the time allotted, notify the proctor. Time may be considered a factor in determining a winner when there is a tie score.
7. Place your scoring sheet on top of your jobs. Jobs should be placed in numerical order.

PRODUCTION STANDARDS	
0 Errors	100 Points
1 Error	90 Points
2 Errors	70 Points
3 Errors	50 Points
4+ Errors	0 Points

Multiple Choice Questions

Directions: Identify the letter of the choice that best completes the statement or answers the question.

1. A statute of limitations is intended to:
 - A. guide ethical conduct in a legal proceeding
 - B. limit the amount of evidence that may be brought forth in a case
 - C. allow only a certain amount of time for discovery
 - D. limit the amount of time in which a legal action may be initiated
2. The process by which parties gather information and evidence prior to trial is:
 - A. arbitration
 - B. discovery
 - C. mediation
 - D. interrogation
3. The purpose of a legal memorandum within a law firm is to:
 - A. notify all parties of the progress in the case
 - B. communicate with the client and other parties
 - C. summarize the facts and issues of the case
 - D. present evidence about the opposing parties in a lawsuit
4. A term that refers to the process in which a jury or a trial judge decides the outcome of a lawsuit is:
 - A. arbitration
 - B. mediation
 - C. negotiation
 - D. adjudication
5. A court filing by one party or the other in a lawsuit requesting specific relief from the court is a(n):
 - A. cross examination
 - B. affidavit
 - C. motion
 - D. interrogatory
6. The main roles of a court clerk in a legal proceeding are to:
 - A. provide legal advice and information to the parties
 - B. mediate disagreements between parties and decide resolution
 - C. schedule hearings and manage court records
 - D. research and prepare arguments for the court
7. Which of the following type of debt is generally not able to be discharged in bankruptcy?
 - A. mortgage debt
 - B. credit card debt
 - C. student loan debt
 - D. medical debt

8. The person who administers a person's estate after their death is known as a(n):
 - A. testator
 - B. personal administrator
 - C. executor
 - D. director
9. The process of writing a will or planning for the distribution of one's assets after death is known as:
 - A. probate
 - B. estate planning
 - C. trust administration
 - D. financial planning
10. A document which grants a person the authority to act on behalf of another is a(n):
 - A. power of attorney
 - B. affidavit
 - C. writ of habeas corpus
 - D. contract
11. The process of resolving a legal dispute outside of court with the assistance of a neutral third party is:
 - A. jurisprudence
 - B. litigation
 - C. adjudication
 - D. mediation
12. The term for intentional deception that results in loss to another is known as:
 - A. negligence
 - B. breach of contract
 - C. intestate
 - D. fraud
13. The term for the legal principle that similar cases should be decided in a similar manner is known as:
 - A. stare decisis
 - B. habeas corpus
 - C. voir dire
 - D. adjudication
14. The legal process that manages the distribution of one's assets after death is:
 - A. habeas corpus
 - B. trust administration
 - C. final distribution
 - D. probate

15. The legal authority of a court to decide a case is known as:
- A. jurisdiction
 - B. deposition
 - C. foreclosure
 - D. jurisprudence
16. A legal document that transfers ownership of personal property from one individual to another is a:
- A. deed
 - B. contract
 - C. bill of sale
 - D. conveyance
17. Isabella, a paralegal, charges \$150 per hour for her research services. She conducted research on a client's case for 8 hours and 30 minutes. What is the total amount that should be billed to the client for paralegal services?
- A. \$1,200
 - B. \$1,245
 - C. \$1,275
 - D. \$1,350
18. What is the term for transferring documents from active filing areas to long-term storage for filing purposes?
- A. archiving
 - B. recycling
 - C. purging
 - D. storing
19. Why is a tickler system for legal filing important?
- A. it allows easy access to files without delay in finding them
 - B. it prevents any duplication of names as in alphabetic filing
 - C. it allows the law firm to track important dates and deadlines for legal matters
 - D. it prevents users from coming across confidential legal information
20. The hierarchy of federal courts in the United States, from lowest to highest, are:
- A. district courts, circuit court of appeals, supreme court
 - B. circuit court of appeals, district courts, supreme court
 - C. supreme court, district courts, circuit court of appeals
 - D. district courts, supreme court, circuit court of appeals
21. The right to a speedy and public trial by an impartial jury is guaranteed to all in the _____ Amendment to the U.S. Constitution.
- A. Sixth
 - B. Seventh
 - C. Eighth
 - D. Ninth

22. A person may gain legal ownership of property by openly and continuously occupying it for a certain period of time. That concept is known as:
- A. res judicata
 - B. adverse possession
 - C. deed by open occupation
 - D. possession of title by time
23. The Latin term referring to a situation where a litigant represents themselves in court, without a lawyer, is known as:
- A. pro se
 - B. ex parte
 - C. quasi
 - D. pro bono
24. Which of the following is a federal court?
- A. probate court
 - B. bankruptcy court
 - C. family court
 - D. state supreme court
25. The rules and regulations by which corporations are governed are set forth in the corporation's:
- A. articles of incorporation
 - B. corporate charter
 - C. corporate operations manual
 - D. bylaws
26. The legal term for a handwritten will is:
- A. invalid will
 - B. holographic will
 - C. receivership will
 - D. italicized will
27. Legal assistants can fulfill all of the following roles, EXCEPT:
- A. telephone communication with client to set up a meeting
 - B. represent a client at a court hearing
 - C. create rough drafts of legal documents
 - D. witness client signatures on documents
28. An attorney's trust fund account may be used:
- A. to pay staff wages
 - B. to pay a judgment on behalf of the client
 - C. to pay for operating expenses of the firm
 - D. to pay the firm's office rent

True/False Questions

Directions: Identify the letter of the correct choice for each statement below.

29. A subpoena is a court order that requires a person to appear in court as a witness.
A. True
B. False
30. The offense of assault requires physical contact with the victim by the offender.
A. True
B. False
31. In contract law, consideration refers to the legal capacity of the parties to enter into a contract.
A. True
B. False
32. A plea of no contest has the same legal effect as a plea of guilty, but the defendant does not admit guilt for civil liability purposes.
A. True
B. False
33. A motion for summary judgment is granted if it is determined that there are no genuine issues of material fact and the party who filed the motion is entitled to judgment as a matter of law.
A. True
B. False
34. A corporation is considered a legal entity separate from its owners, which means that the owners are not held personally liable for the corporation's debts or obligations.
A. True
B. False
35. A default judgment may be entered against a defendant if that defendant fails to appear in court.
A. True
B. False

Job 1: Letter

As a legal assistant to Attorney Jeff Melchiori, you are asked to key a letter, according to *Style & Reference Manual* format. Please correct any errors in spelling punctuation, or grammar. The information for the letter is as follows:

To: The Honorable Mary L. Hynes, Circuit Judge, Lenawee County Circuit Court, 425
N. Main Street, Adrian Michigan 49221

Copy to: Samantha Sobczak

From: Jeff Melchiori, Attorney at Law

Subject: Hunter v. Ojeda Final Judgment, Case No. MI-57922-GC

Body of letter:

Dear Judge Hynes,

I am writing to respectfully request your signature on the attached Final Judgment in the case of Hunter v. Ojeda, which case was recently heard in your courtroom. After a careful consideration of the facts and a thorough examination of all evidence in the case, and following arguments presented by both parties, I believe that the Final Judgment as drafted accurately reflects your ruling and is an equitable resolution of this case.

Please review the proposed Final Judgment and, if it meets with your approval, kindly date and sign where indicated at the bottom of the pleading. After signature, please ensure that your court clerk certifies the Final Judgment and enters it into the official case record, forwarding certified copies to myself and opposing council.

Thank you for your attention to this matter.

Job 2: Final Judgment

You will also need to prepare a Final Judgment to be submitted with the letter in Job 1. The information for that Final Judgment is located below. Follow the format from the *Style & Reference Manual*.

Venue:	39th Circuit Court for Lenawee County, Michigan, located in the city of Adrian, Michigan
Defendant:	Donald Ojeda
Plaintiff:	Sophia Hunter
Trial Date:	February 6, 2025
Judgment Amount:	\$140,000
Interest on Judgment:	8%
Judge:	Mary L. Hynes
Case No.:	MI-57922-GC